



Know Your Rights: The First Steps to Take if Your Employment Rights Have Been Violated in California



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As an employee in the State of California, you're entitled to a variety of rights and protections under the law.

Even though you work "for" your employer, your employer is still required by law to pay you correctly, create a safe workplace, free of discrimination and harassment, and to respect the rights that you're entitled to.

But what happens if your employer is violating those rights?

It may feel overwhelming – and you may feel alone and powerless. But you don't have to feel that way!

At Whitehead Employment Law, we're passionate defenders of employee rights across the State of California.

Our practice is 100% focused on helping employees understand and defend their rights - and helping them to recover the compensation they deserve if those rights are violated.

We created this complimentary resource to help you understand what to do if you think that your employer is violating your rights.

It's split into two sections – first, what you need to know if you're still working for your employer.

And second, what you need to know if you've been fired or otherwise separated from your employer. If that's your situation, feel free to skip the first section and start reading in Section Two.

Section One: What to Do If You're Still Working for your Employer and Your Rights Have Been Violated

The most important action you can take if you're still working for your employer is to make sure you communicate with the company and let them know about the problem and give them the opportunity to resolve it.

If you're not being paid your correct wages or overtime, if you're not being paid for all time worked, if you're not receiving proper rest/meal breaks, if you're being discriminated against, or if you feel your rights are being violated in another manner – first have a conversation with your supervisor or your HR department.

Make sure that you bring up the manner in a calm and reasonable way. First of all, this will give you the best opportunity to resolve the issue with your employer. And secondly, if you do eventually need to take legal action, you will have a stronger case if you begin by seeking a reasonable solution.

Common Workplace Violations in CA

- Employer failed to provide uninterrupted meal and rest breaks
- Employer failed to pay all wages owed (overtime, working off the clock)
- Employer failed to reimburse you for work-related expenses like cell phone, computer, and travel time/mileage for work-related travel
- You've been discriminated against, harassed or demoted because of a medical issue, pregnancy, injury or disability
- You've been discriminated against because of your age, race, gender, religion, or other protected class
- You've been sexually harassed
- You've been retaliated against for complaining about/reporting a safety issue, wage issue or other illegal violation
- You've been misclassified as an independent contractor, or salaried when you should be hourly

Here are a few key points to understand:

- If you have a medical condition, disability, pregnancy or other medical issue, it's important that you tell your employer. You can't sue your employer for not accommodating your disability if they weren't even aware. You have to give them a chance to help you.
- If you're being harassed or discriminated against by co-workers or your supervisor, file a complaint with HR or speak with the appropriate person at the company. Some employers have hotlines. Others have an HR department or complaint process.
- Make sure you speak to the appropriate people within your organization. Many times we've seen clients or potential clients who didn't complain to the right people about the issue. For example, they may have spoken to their direct supervisor, but never told anyone else.
- Documentation is critical. Document all efforts to communicate with your employer/HR/boss about the issues. Keep track of a timeline of events and issues, and make sure emails, text messages, voicemails or any other communications with the company are saved.

Bottom line: You can't sue an employer for something they were unaware of. So the first step is making sure you've spoken to the right people about your situation.

However, if you've made reasonable attempts to put your employer on notice and the issues are still continuing, you may want to consider filing a complaint with a state or federal agency who can help resolve the issues.

- For discrimination issues – file a complaint with the [California Department of Fair Employment and Housing](#) or the US [Equal Employment Opportunity Commission](#).
- For wage and hour issues – file a complaint with the [California Labor Commissioner](#).
- For safety issues – file a complaint with the US [Occupational Safety and Health Administration](#) or Cal [Osha](#).

The next step is to contact an experienced employment attorney.

At this stage, many attorneys won't be able to help since you still work at the company, so make sure you speak to an attorney who offers a free initial consultation and is able to guide you through your options.

That way, if you get fired or leave the employer, you can follow up and get help with your case later on. Contingency fee attorneys like our firm may be able to counsel you through the situation if you're still working. Make sure the attorney works on a contingency basis and not hourly so that you aren't charged up front unless they take the case and win compensation for you.

Throughout this process, it's very important to take care of your physical and mental health:

If problems continue, seek support and professional help. If you have a medical issue or disability, seek your doctor's help and follow their directions. Having medical issues at work can be extremely stressful – seek support through family and friends, as well as professional help through a therapist or psychologist.

Make sure you budget wisely and plan for the future. If you think you are going to lose your job, don't go buy a new car. Now is not the time to splurge. Start setting money aside in the event that you have to look for a new job. This will minimize stress if you are terminated or leave the company, and will give you the ability to not have to take the first job that comes along

And finally – don't let your employer convince you to resign or sign a severance without speaking with an attorney first.

Please [contact us](#) if you'd like to request a free initial consultation!

Section Two: What to Do If Your Rights Have Been Violated And You're No Longer With The Company

If you've been fired or otherwise separated from your employer, seek legal counsel immediately.

If you can't find an employment attorney to take your case, you can also file with the California Labor Commissioner, the Department of Fair Employment and Housing, or the Equal Employment Opportunity Commission on your own.

Here are key points to consider following your separation:

- Make sure you receive your final check and are paid out for all benefits you're owed – including PTO, benefits, 401k, bonuses, any unpaid time or overtime.
- If you had health insurance through your employer, make sure you receive a COBRA letter to ensure that you can continue with your health plan during your transition.
- Don't let your employer make you sign a release. If you're offered a severance, have an attorney review the agreement first.
- If you are fired and don't receive your final check or are still owed compensation, make sure you let your attorney know. Your employer has to pay damages for every day that goes by without giving you your final pay.
- Preserve all evidence – make sure you save all text messages, pay stubs, emails, screenshots, call logs, travel receipts, emails or any communications from the company, HR, and co-workers. This includes work schedules and even doctor's notes. Don't trade in your cell phone if this could have evidence of your communications with the company. Keep your old cell phone and make sure all data from the phone is preserved.
- Document a timeline of events to give to your attorney. Keep track of any communications or developments that occur after you are fired.
- Keep track of any medical changes or other ways your that termination has affected you physically and mentally. Keeping a journal is very helpful. This can all be used later on to seek damages for emotional damages.

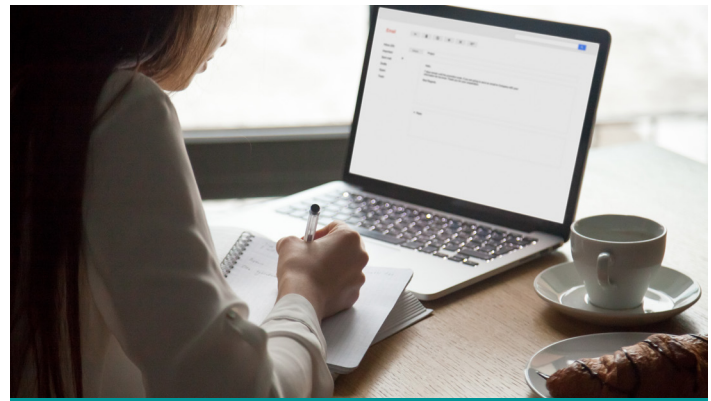
It's easier said than done, but do your best to remain calm throughout this situation. Be careful how you respond and how you communicate.

It's always best to not do anything rash. This doesn't minimize what you're going through, but by remaining calm and not retaliating, you will have a stronger case moving forward.

Destroying company property, deleting emails, or creating a scene when you're terminated will only make matters more difficult down the road. It won't look good to a potential jury and will make it harder for an attorney to help you win compensation.

In the meantime, here are the next steps:

- Consider filing for unemployment. But always speak with an attorney first, because what you say to the employment office becomes part of the official record.
- As soon as you are physically and mentally capable, start looking for a new job. In our experience, those that earnestly look for a new job end up better off and are able to heal from the trauma of losing their job faster.



Evidence You Need to Preserve

- Save screenshots of text messages relevant to your work issues
- Save emails, screenshots of phone calls logs, and any other communications with the company.
**Make sure you save this on a personal phone or computer, not your workplace phone or computer.*
- Keep a written timeline of notes, key events and conversations
- Keep paystubs and time clock records
- Keep receipts, travel logs, mileage logs, travel itineraries, and anything else regarding work-related reimbursements
- If your potential case involves a medical issue, save doctor's notes, medication and/or surgery notes and communications with your company regarding your medical issue

- Document all efforts to find a new job! If you don't make a reasonable effort to find a new job, it will affect how much money you are awarded by a jury. The jury or judge who resolves these issues will not look favorably upon someone who was not making efforts to find a new job.
- Don't post anything related to your case on social media. Do not share anything about your issues or case with anyone but your attorney.
- Sometimes other friendly co-workers will text or email you, and will share your responses with the boss or company. This can negatively affect your case, and will come up as evidence against you. Don't assume your co-workers will keep everything you tell them confidential. Don't text or call your former co workers or anyone at the company without talking to your attorney first. Be careful with what you share with family and friends without first speaking to your attorney – it's best to keep it confidential. Anything you say can and will be used against you by the company.

This is a stressful process – we understand! It's very important that you take care of yourself.

Seek the physical and mental help you need. Being treated unfairly is hard psychologically and emotionally. Seek support from family, friends and medical specialists if you need help.

And, let your attorneys take the load off your shoulders. It's best to let them handle the details so you can move on with your life.

If you'd like our help, our expert employee rights attorneys are here for you - simply [click here to request a free consultation](#).





ABOUT SW EMPLOYMENT LAW

Employment law is what we do — it's what we're passionate about, and it's the sole focus of our law practice.

We're committed to effectively representing the rights of employees across the state of California — because we believe that everyone has the right to earn a living and provide for their family, free of unlawful discrimination and harassment.

Our firm has won millions of dollars for employees all over California and we only take cases on contingency, which means we don't get paid unless we win your case. Our fees come out of the court verdict or settlement with the company, so you don't pay anything out of pocket.

If you'd like our help evaluating your case and understanding the options available to you, we would love to help.

Call us at **888-492-0633** for a free consultation or visit **SWEmploymentlaw.com** to fill out our free case evaluation form. It's your turn to be the boss.

